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Tentative Ruling

Re: ***Brooklyn Farms, LLC v. Fromaggio Farms, LLC et al.***
Superior Court Case No. 24CECG05078

Hearing Date: July 16, 2026 (Dept. 403)

Motion: By Plaintiff to Strike Answer and Cross-Complaint

Tentative Ruling:

To grant and strike the answer and cross-complaint as to defendant Fromaggio Farms, LLC, without leave to amend. (Code Civ. Proc., § 436.)

Explanation:

Plaintiff Brooklyn Farms, LLC ("Plaintiff") moves to strike the Answer and Cross-Complaint filed on behalf of defendant Fromaggio Farms, LLC ("Defendant"). Plaintiff submits that Defendant is now improperly a self-represented business entity.

The court previously found good cause as to striking the pleadings as sought against Defendant. The court thereon continued this matter from June 18, 2026 to give Defendant one final opportunity to find representation. Defendant has failed to do so. Defendant has also failed to file any response to this motion. Accordingly, the court grants the motion to strike, without leave to amend. The answer and cross-complaint as to Fromaggio Farms, LLC, is ordered stricken.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** July 15, 2026.

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Tentative Ruling

Re: ***Michael Delgado v. Ford Motor Company***
Superior Court Case No. 24CECG05167

Hearing Date: July 16, 2026 (Dept. 403)

Motion: By Defendant Ford Motor Company for Summary
Adjudication

Tentative Ruling:

To deny defendant's motion for summary adjudication as to Plaintiff's second cause of action for violation of the Magnuson-Moss Warranty Act, without prejudice. (Code Civ. Proc., § 437c.)

Explanation:

On April 21, 2023, the plaintiff, Michael Delgado (Plaintiff), purchased a used 2021 Ford Bronco (Subject Vehicle) from third-party Fahrney Automotive. On December 5, 2024, Plaintiff filed a complaint against the manufacturer, Ford Motor Company (Defendant). Plaintiff later filed his first amended complaint (FAC), which contains causes of action for: (1) breach of express warranty under California Commercial Code section 2313; (2) violation of the Magnuson-Moss Warranty Act (Magnuson-Moss Act); and (3) violations of the Consumers Legal Remedies Act (Civ. Code, § 1750 et seq.). Defendant now moves for summary adjudication as to Plaintiff's second cause of action.

Summary Judgment/Adjudication

A motion for summary judgment is generally directed toward an entire action or pleading. (Code Civ. Proc., § 437c, subd. (a).) By comparison "[a] party may move for summary adjudication as to one or more causes of action within an action" (Code Civ. Proc., § 437c, subd. (f)(1).) In addition, "[a] motion for summary adjudication shall be granted only if it completely disposes of a cause of action" (Code Civ. Proc., § 437c, subd. (f)(1).) "A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment." (Code Civ. Proc., § 437c, subd. (f)(2).)

Code of Civil Procedure section 437c, subdivision (c) provides that summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." A defendant moving for summary judgment has the initial burden of presenting evidence that a cause of action lacks merit because the plaintiff cannot establish an element of the cause of action or there is a complete defense. (Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 853 (*Aguilar*).) If the defendant satisfies this initial burden, the burden shifts to the plaintiff to present evidence demonstrating there is a triable issue of material fact. (Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar*, at p. 850.)

If a defendant fails to address all theories of liability alleged in the complaint, the trial court should stop its analysis and deny the motion for summary judgment:

If the defendant does not address an issue in a motion for summary judgment that has been raised in the plaintiff's complaint, it fails to meet its initial burden to show the plaintiff's action has no merit; the motion therefore fails to shift the burden to the plaintiff to oppose summary judgment. [Citation.]

(*Hedayati v. Interinsurance Exchange of the Automobile Club* (2021) 67 Cal.App.5th 833, 846.)

Defendant Fails to Satisfy Its Initial Burden

In his second cause of action, Plaintiff alleges breach of warranty under the Magnuson-Moss Act. The parties agree that if a warrantor establishes a compliant informal dispute settlement procedure that meets the requirements of the Federal Trade Commission's rules, a plaintiff who fails to use the compliant procedure before filing suit is precluded from filing a claim under the Magnuson-Moss Act. (15 U.S.C. § 2310(a)(3).) Defendant now contends Plaintiff's failure to use Defendant's established dispute-resolution program precludes his cause of action under the Magnuson-Moss Act.

To meet its initial burden to establish that it participates in a compliant procedure, Defendant includes a legal conclusion as part of its "fact" number two, which provides in full:

Ford participates in the Better Business Bureau's ("BBB") Autoline [sic] Program for alternative dispute resolution, *a process that substantially complies with the Magnuson-Moss Warranty Act.*

(Fact No. 2, italics added.)

The court finds Defendant provides evidentiary support to show Defendant participates in the BBB Auto Line Program. But Defendant fails to meet its initial burden to establish, as a matter of law, that the BBB Auto Line Program complies with the Magnuson-Moss Act. Defendant relies solely on the declaration of Jon Sprunger, Defendant's Customer Relationship Center Operations Manager, at paragraph 2, wherein Mr. Sprunger states:

Ford participates in the Better Business Bureau's Auto Line Program for alternative dispute resolution, a process that complies with the Magnuson-Moss Warranty Act. Attached hereto as Exhibit "A" is a true and correct copy of the 2021 Model Year Warranty Guide showing that Defendant Ford participates in the Better Business Bureau's Autoline [sic] Program.

Plaintiff's evidentiary objection number 2 objects to portions of the above-quoted paragraph 2 as an improper legal conclusion under Evidence Code section 800:

Regarding the statements that “Better Business Bureau's Auto Line Program for alternative dispute resolution” is “a process that complies with the Magnuson-Moss Warranty Act.” Evidence Code section 800 restricts the opinions of a nonexpert witness to those that are “(a) [r]ationally based on the perception of the witness; and (b) [h]elpful to a clear understanding of his testimony.” Whether a private alternative dispute resolution program satisfies the requirements of a federal statute—the Magnuson-Moss Warranty Act, 15 U.S.C. § 2301 et seq.—is plainly not a matter “rationally based on perception.” It is a legal judgment requiring analysis of the statute's requirements and the program's conformance with them.

The court sustains Plaintiff's evidentiary objection number 2 to the statements that “Better Business Bureau's Auto Line Program for alternative dispute resolution” is “a process that complies with the Magnuson-Moss Warranty Act,” on the grounds noted above.

In its reply, Defendant criticizes Plaintiff for failing to produce any evidence to support his position that the BBB Auto Line Program fails to comply with the Magnuson-Moss Act. But until Defendant meets its initial burden of persuasion and production, which it fails to do, the burden does not shift to Plaintiff to raise a triable issue of material fact. Defendant in its reply suggests the BBB Auto Line Program is compliant “[a]s recognized by the Department of Consumer Affairs[.]” (Rpy., p. 2:25-26.) In its moving papers Defendant submits no supporting evidence to support this statement, and such evidence would be inappropriate with its reply. (Code Civ. Proc., § 437c, subd. (b)(4) [“The reply shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers.”])

When the moving party fails to make the initial showing, it is unnecessary to review the opposing party's evidence and the court must deny the motion. (*Aguilar, supra*, 25 Cal.4th at p. 849-850; *Hawkins v. Wilton* (2006) 144 Cal.App.4th 936, 940 [defendant's motion for summary judgment should have been denied without looking at opposing evidence because defendant failed to refute tenable pleaded theories].) Here, the burden here does not shift to Plaintiff to raise a triable issue of fact and the court may stop its analysis here.¹

¹ Plaintiff cites federal laws and regulations to show Defendant's BBB Auto Line Program fails to satisfy the Federal Trade Commission's minimum requirements. Plaintiff also cites other authorities, such as *Muller v. Winnebago Industries, Inc.* (D. Ariz. 2004) 318 F.Supp.2d 844, where the federal district court considered a manufacturer's evidence to show compliance with an informal dispute resolution procedure (the BBB Auto Line Program) under the Magnuson-Moss Act, such as audits completed by state regulators, but found the evidence concerning the BBB Auto Line Program insufficient to establish compliance for purposes of federal and Arizona law. The court need not consider Plaintiff's authorities at this juncture. (Although the cited federal decision is not binding on this court, the court may consider such a case insofar as it finds the reasoning persuasive. [See *Episcopal Church Cases* (2009) 45 Cal.4th 467, 490.]

Evidentiary Objections

The court sustains Plaintiff's evidentiary objection number 2 to Mr. Sprunger's declaration as to the statement that the BBB's Auto Line Program for alternative dispute resolution is a process that complies with the Magnuson-Moss Act. The remaining objections either go to the weight of the evidence rather than the admissibility, or are not dispositive to the motion, therefore, the court need not rule on them. (Code Civ. Proc., § 437c, subd. (q) [court need rule only on objections court deems material to its disposition].)

Conclusion

In conclusion, Defendant fails to meet its burden of production and persuasion to prevail on its motion for summary adjudication. Therefore, the court denies Defendant's motion for summary adjudication as to Plaintiff's second cause of action for violation of the Magnuson-Moss Act, without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on July 15, 2026.
(Judge's initials)